

default of the vendor, as by fire (*j*), or dilapidations (*k*), the loss will fall on the purchaser; and if the accident by which the damage arises brings with it legal obligations which must be immediately *answered, and which [*142] the vendor satisfies, the expense thus incurred must be borne by the purchaser (*a*). But where pending the completion of a purchase of copyholds the trustee for sale died, and a new admittance became necessary, it was held that the expense of the fine must be borne by the trust estate (*b*). Should the estate become by any accident more valuable, the purchaser then will take the improvement (*c*). It should be observed, however, that the *vendor* is, after all, a trustee *sub modo* only, for he cannot be compelled to deliver up the possession until the purchase-money has been paid (*d*). And so the *purchaser* is only a *cestui que trust sub modo*, and he cannot enforce any equitable rights attached to the estate until the contract has been completed (*e*).

21. It would be endless to pursue implied trusts through all their ramifications; a subject so extensive that years might be passed in the study of equitable jurisprudence, without exhausting so ample a field; but the leading general principles by which the Courts are guided may be gathered sufficiently for our purpose from the few examples given.

(*j*) *Paine v. Meller*, 6 Ves. 349; *Harford v. Purrier*, 1 Mad. 539, *per* Sir T. Plumer; *Acland v. Gaisford*, 2 Mad. 32, *per eundem*. As to Stent *v. Bailis*, 2 P. W. 220, see *Paine v. Meller*, 6 Ves. 352.

(*k*) *Minchin v. Nance*, 4 Beav. 332.

(*a*) *Robertson v. Skelton*, 12 Beav. 260.

(*b*) *Paramore v. Greenslade*, 1 Sm. & Giff. 541.

(*c*) See *Harford v. Purrier*, 1 Mad. 539; *Revell v. Hussey*, 2 B. & B. 287; *Paine v. Meller*, 6 Ves. 352; *Spurrier v. Hancock*, 4 Ves. 667; *White v. Nutts*, 1 P. W. 61.

(*d*) See *Acland v. Gaisford*, 2 Mad. 32; *Wall v. Bright*, 1 J. & W. 494; *M'Creight v. Foster*, 5 L. R. Ch. App. 604.

(*e*) See *Tasker v. Small*, 3 M. & Cr. 70.